

15	Quaid vs. Orange County Fire Authority	<u>Demurrer (re First Amended Answer)</u> The court SUSTAINS, with 15 days leave to amend, Plaintiff CATHERINE QUAID’s unopposed demurrer to the following affirmative defenses in the First Amended Answer (FAA) filed by Defendant/Cross-Defendant BRIGHTVIEW LANDSCAPE SERVICES, INC. (Doe 30) (“Defendant Brightview”): 7th, 8th, 13th, 21st, and 24th affirmative defenses. 6th A/D (estoppel) In one paragraph, the sixth affirmative defense states that “plaintiff is barred from recovery by the equitable doctrine of estoppel because she already filed a claim with the appropriate government entities.” The elements of the affirmative defense for equitable estoppel are: (i) the plaintiff was apprised of the facts; (ii) that the plaintiff: (a) intended that the conduct be acted upon, or (b) acted such that defendant had a right to believe it was intended; (iii) the defendant was ignorant of the true facts; and (iv) the defendant relied upon the conduct to the party’s injury. (<i>Sofranek v. Merced County</i> (2007) 146 Cal.App.4th 1238, 1250.) The FAA does not state sufficient facts to support a defense for estoppel. The FAA alleges no interaction between these two parties prior to the alleged incident to support a defense of estoppel. As such, the demurrer to the sixth affirmative defense is SUSTAINED. 7th A/D (unclean hands) The seventh affirmative defense states that “plaintiff is barred from recovery by the equitable doctrine of unclean hands because this answering defendant is unsure if Plaintiff contributed to the occurrence of the alleged slip and fall.” The doctrine of unclean hands bars recovery when the plaintiff has violated conscience, good faith, or other
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equitable principles in conduct that relates directly to the transaction at issue. (*Fibreboard Paper Products Corp. v. East Bay Union of Machinists Local 1304* (1964) 227 Cal.App.2d 675, 726.) The misconduct must “relate directly to the transaction concerning which the complaint is made” and “pertain to the very subject matter involved” so as to “affect the equitable relations between the litigants.” (*Id.* at p. 729.) Whether the doctrine bars recovery in tort depends on “analogous case law, nature of misconduct, and relationship of misconduct to claimed injuries.” (*Blain v. Doctors Co.* (1990) 222 Cal.App.3d 1048, 1060.)

Here, the FAA does not allege facts to support the defense and, in fact, concedes no such facts are known to the answering defendant at this time.

As such, the demurrer to the seventh affirmative defense is SUSTAINED.

8th A/D (failure to mitigate damages)

The eighth affirmative defense states that “plaintiff “could have mitigated her alleged injuries, damages or losses, if any, by the exercise of reasonable efforts” and “failed and refused to do so.”

The elements of the affirmative defense for failure to mitigate damages are: (i) party has suffered damage resulting from a breach of contract or tort; (ii) the party failed to take reasonable steps and exercise ordinary care to mitigate the damages; and (iii) losses which could have been avoided for which there can be no recovery. (*Valle De Oro Bank v. Gamboa* (1994) 26 Cal. App. 4th 1686, 1691.)

The FAA alleges no facts to constitute the defense, only conclusory statements which are insufficient to overcome demurrer.

As such, the demurrer to the eighth affirmative defense is SUSTAINED.

13th A/D (assumption of risk)